

language of Lord Cranworth's Act (which did not apply to a life interest) being copied without the necessary modification, and until the point has been decided it will be prudent, in any instrument giving a life interest to an infant, to insert a maintenance clause and exclude the operation of the section.

30. **Conflicting powers under the recent Act.**—It is to be observed that cases may easily arise in which the trustees would be in a position to exercise either the powers of sect. 42, or those of sect. 43 of the late Act, as for instance if under an instrument coming into operation since the 31st December, 1881, real estate were vested in them in trust for an infant for life, and the trustees had a power of sale or of consenting to the exercise of a power of sale; and as the accumulations of income would or might go in different channels according as the trustees were acting under the one section or the other, they would be placed in a position of \*difficulty. It is conceived that if it [\*585] were requisite for the trustees to exercise any of the special powers of sect. 42, they would be treated as having entered into possession under that section, and that the accumulations of income would go accordingly, but that in a simple case where the trustees merely received the income as legal owners and had no occasion to exercise any of the powers of sect. 42, the accumulations would go as directed by sect. 43. It would, however, be prudent, in framing any instrument under which the difficulty could arise, to provide for the disposition of the accumulations.]

31. **Out of principal.**—Where the amount of the legacy is inconsiderable, as 100*l.*, the Court would, in the absence of other means, direct maintenance to the child out of the *principal* itself (*a*); the executor, therefore, who, under similar

(*a*) *Ex parte Green*, 1 J. & W. 253; *Ex parte Chambers*, 1 R. & M. 577; *Ex parte Swift*, Ib. 575; *Re Mary England*, Id. 499; *Harvey v. Harvey*, 2 P. W. 21; *Ex parte Hays*, 3 De G. & Sm. 485. In *Re Howarth*, 8 L. R. Ch. App. 415, the Lords Justices held that the Court had jurisdiction to

order maintenance, where there were no other means, out of the *corpus* of an infant's freehold estate; and in *De Witte v. Palin*, 14 L. R. Eq. 251, V. C. Malins allowed maintenance to be raised by a charge on reversionary property.